

25STCV31247 25STCV31247

County: los-angeles

Division: Civil Law and Motion

Department: 735

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Case Number: 25STCV31247 Hearing Date: July 20, 2026 Dept: 735

Aurelio v. Cerilo, et al.

Defendant Cerilo's Motion to Set Aside Entry
of Default

BACKGROUND

On October 25, 2025, Plaintiff Norma

Salvatera Aurelio filed a complaint against Defendants Alexander Cerilo, et al., asserting causes of action for breach of fiduciary duty, conversion, tortious interference, defamation, IIED and injunctive relief.

On February 9, 2026, Plaintiff entered
default against all Defendants.

LEGAL STANDARD

CCP § 473.5(a) provides that “[w]hen service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action.”

DISCUSSION

Defendant Cerilo moves to set aside the

February 9, 2026 default entered against him per CCP § 473.5. Defendant asserts that the proof of service of summons and complaint shows Defendant was served

via substitute service, but Defendant did not receive a mailed copy of the complaint and thus did not receive actual notice of the complaint.

The Court's record reflects one proof of service on Defendant Cerilo filed on November 21, 2025. This proof of service states that Defendant was served via personal service at an address on Temple Street on November 13, 2025. Plaintiff does not address this discrepancy in opposition. Instead, Plaintiff argues that substitute service by the Sheriff's Office is presumptively valid.

The Court will set aside default. Though there is a discrepancy in the manner of service described by the parties and the proof of service filed, Defendant has proffered a declaration stating he was not personally served with the complaint, he did not receive a mailed copy nor did he receive actual notice of the complaint. Defendant diligently sought to set aside the default, filing this motion approximately one month after it was entered. Defendant has also filed an answer to the complaint. The Court grants Defendant's motion.

CONCLUSION

The Court grants Defendant Alexander Cerilo's motion to set aside entry of default.

Defendant to give notice.